# 25NNCV07331 25NNCV07331

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25NNCV07331 Hearing Date: August 28, 2026 Dept: B

Hon. Victor Avila, Dept B

MOTION FOR ATTORNEY'S FEES

Hearing Date: 8/28/26

CASE NO.: 25NNCV07331

CASE NAME: Petrosyan v. Tesla Inc.,
dba Tesla Motors, Inc.

Moving Party: Plaintiff David Petrosyan

Responding Party: Defendant Tesla, Inc.

Notice: Sufficient

Ruling: GRANT.

NOTICE

The
Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 4:00 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at [email protected] or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

This is a lemon law case. On October 15, 2025, plaintiff David Petrosyan (Plaintiff) filed a Complaint against defendant Tesla, Inc. (Defendant) asserting violations of the Song-Beverly Act. On January 10, 2026, the matter was settled.

On February 23, 2026, Plaintiff filed the instant motion seeking payment of attorney’s fees and costs pursuant to the judgment. On August 17, 2026, Defendant filed an opposition. On August 21, 2026, Plaintiff filed a reply.

LEGAL STANDARD

A prevailing party is entitled to recover costs, including attorneys’ fees, as a matter of right. (Code Civ. Proc., §§ 1032(a)(4), 1032(b), 1033.5.)¿¿

The fee setting inquiry in California ordinarily begins with the “lodestar” method, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. A computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys’ fee award. The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (Serrano v. Priest (1977) 20 Cal.3d 25, 49.)¿ Such an approach anchors the trial court’s analysis to an objective determination of the value of the attorney’s services, ensuring that the amount awarded is not arbitrary. (Id. at 48, n.23.) After the trial court has performed the lodestar calculations, it shall consider whether the total award calculated under all of the circumstances of the case is more than a reasonable amount and, if so, shall reduce the section 1717 award so that it is a reasonable figure. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095-96.)¿¿

The factors considered in determining the modification of the lodestar include the nature and difficulty of the litigation, the amount of money involved, the skill required and employed to handle the case, the attention given, the success or failure, and other circumstances in the case. (EnPalm, LLC v. Teitler Family Trust (2008) 162 Cal. App. 4th 770, 774 (emphasis in original).) A negative modifier was appropriate when duplicative work had been performed. (Thayer v. Wells Fargo Bank, N.A. (2001) 92 Cal.App.4th 819.)¿¿

“The reasonable hourly rate is that prevailing in the community for similar work.” (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) “The experienced trial judge is the best judge of the value of professional services rendered in [her] court.” (Ibid.) “A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the ‘careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.” (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.) “The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. The court may also consider whether the amount requested is based upon unnecessary or duplicative work.” (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.)

DISCUSSION

Plaintiff seeks
to recover attorney fees and reimbursement costs from Defendant pursuant to the Song-Beverly Act. (Mot., p. 3.) Plaintiff seeks a total amount of $18,299.75 consisting of (1) a lodestar figure of $17,600, and (2) $699.75 in costs.

Prevailing Party

Plaintiff argues
they are entitled to attorney’s fees because the matter resulted in settlement and Defendant provided relief. (Mot., p. 5.)

The Court
finds—and Defendant does not dispute—that Plaintiff is entitled to recover

attorney's fees and costs from Defendant pursuant to the Song-Beverly Act and the parties' settlement. (Kiridjian Decl., ¶ 6.) Under the Song-Beverly Act, "[if] the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794(d).)

Hourly Rates

Plaintiff seeks an hourly rate for the following individual: $550/hour for attorney Mari Kiridjian. (Mot., p. 8.) Plaintiff's primary support for their billing is history of counsel's experience and qualifications, as well as a prior court order finding the purported hourly rate reasonable. (Mot., pp. 8-9.)

In opposition, Defendant argues that Plaintiff's desired rate is inflated. (Mot., p. 1.) Defendant argues that Lemon Law is not complex and does not constitute a specialized area commanding premium rates. (Opp., p. 6.) Further, Defendant argues that Plaintiff's rate is not memorialized in a provided fee agreement, making the purported rate unsupported (Opp., p. 8.) Defendant maintains that a rate of $235–$350 would be more reasonable. (Opp., pp. 8-11.) In reply, Plaintiff's counsel argues that their rates are reasonable and a very similar rate of $500 has been approved in the past. (Reply, pp. 1-3.)

The Court has considered the declaration of Mari Kiridjian. (Kiridjian Decl., ¶¶ 7-9.) The Court has also reviewed the invoice provided by counsel. (Kiridjian Decl., Exh. B.) In light of the arguments presented by the parties and the court's experience in these matters, the Court finds the following hourly rate reasonable: $500/hour for attorney Kiridjian.

Hours Expended

Plaintiff seeks a lodestar figure of $17,600.00 (32 hours x $550 rate). (Kiridjian Decl., ¶ 11; Exh. B.)

Plaintiff argues that the amount sought should be awarded in full because of the successful result, the full statutory repurchase by Defendant, and the work it took to obtain this result. (Mot., p. 9.) Further, Plaintiff's counsel declares that this time was spent on initial case evaluation, client intake, pre-litigation investigation, drafting, serving the demand, drafting and filing the Complaint, case management, reviewing and analyzing documents, legal research, negotiating and drafting the settlement, and work incurred on the instant motion. (Kiridjian Decl., ¶ 12.)

In opposition, Defendant argues that several entries on counsel's invoice are excessive and should be reduced. (Opp., p. 12.) Defendant has identified each reduction item by item in Exhibit A to the declaration of Donna Hooper. (Ibid.) Defendant argues that costs incurred after settlement was reached should not be paid, clerical work should not be paid, case assessment work should not be paid, and work done on templates (i.e. demand letter and complaint) should not be paid. (Opp., 12-14.)

In reply, Plaintiff's counsel argues that each case is different and Defendant cannot suggest arbitrary timing estimates and justify reductions based on template use which is common across the legal profession. (Reply, pp. 4-6.) Further, Plaintiff argues that the settlement agreement expressly contemplates a fee motion due to the inability of the parties to reach an agreement, so fees and costs associated with the motion should not be discarded. (Reply, pp. 6-8.)

The Court acknowledges arguments made by both parties and, in its discretion, will reduce the lodestar figure to $9,000. The Court finds that Plaintiff's legal staff reasonably expended a total number of 18 hours to commence and prosecute this action and to prepare the pending motion. Since the matter was settled early, prior to any discovery, and due to the straightforward nature of action, the Court will reduce requested fees of $17,600 (32 hours x $550 hourly rate) to $9,000 (18 hours x $500 hourly rate).

Accordingly, the Court finds a lodestar figure of $9,000 reasonable.

Multiplier

Plaintiff explicitly does not seek a multiplier but does identify factors which may support a positive multiplier as (1) the contingency nature of the representation; (2) the delay in payment (3) the need to incentivize competent counsel; and (4) the excellent result achieved. (Mot., p. 9.)

Factors considered in determining a multiplier used to adjust the lodestar figure include: "(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; [and] (3) the contingent nature of the fee award, both from the point of view of eventual victory on the merits and the point of view of establishing eligibility for an award." (Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 248.)

While the Court recognizes that Plaintiff's counsel took this matter on a contingency basis, the Court finds that there is no evidence establishing that this matter involved complex or novel issues that would justify the imposition of a multiplier. Accordingly, the Court does not award a multiplier to adjust the lodestar figure.

Costs

Plaintiff seeks costs in the amount of $699.75 (Mot., p. 9; Kiridjian Decl., Exh. D.) Plaintiff seeks $232 in service of process costs, $30.50 in court filing costs, and $437.25 in Complaint filing costs. (Kiridjian Decl., Exh. D.) Plaintiff provides invoices for costs sought. (Ibid.) Defendant does not dispute costs.

Accordingly, the Court finds Plaintiff's requested costs are supported and reasonable.

Summary

Therefore, Plaintiff is awarded attorney's fees in the reduced amount of $9,000 and costs in the amount of $699.75 for a total sum of $9,699.75. Accordingly, Plaintiff's Motion for Attorney's Fees and Costs is GRANTED.

CONCLUSION
AND ORDER

Plaintiff David
Petrosyan's motion for attorney's fees is GRANTED

MOVING PARTY shall provide notice of
this order and provide a proposed order consistent with this ruling within 15 days from this date.